

**Subject:** Re: Vote NO on Article 38

**From:** Stephen Harrington <sth.alist@gmail.com>

**Date:** 5/24/22, 15:34

**To:** Greg Christiana <GChristiana@town.arlington.ma.us>

**CC:** Douglas Heim <dheim@town.arlington.ma.us>

**BCC:** cloreti@verizon.net, dean.carman@verizon.net, markk02474@gmail.com, matthanley@comcast.net

Dear Arlington Town Meeting Moderator Greg Christiana,

How is my last submission, combined with your correspondence with Kristin Anderson on May 17 - attached, materially different than this example.

<https://www.arlingtonma.gov/home/showdocument?id=61366&t=637889908618611018>

A reasonable person, informed of your historic antipathy towards me, could interpret your shifting standards on this subject as intentionally creating barriers directed at me personally.

Your requirement that others endorse my opinion, childish.

Why Arlington Town Counsel Douglas Heim doesn't advise you to stop playing games and accommodate the public equally (or at all), is troubling.

Stephen Harrington

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**From:** [Ms. Kristin Lee Anderson](#)  
**To:** [Juli Brazile](#); [Greg Christiana](#)  
**Subject:** (Archive Copy) Stephen Harrington's odd request  
**Date:** Tuesday, May 17, 2022 10:41:22 AM

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CAUTION: This email originated from outside your organization. Exercise caution when opening attachments or clicking links, especially from unknown senders.

Good morning,

My neighbor Stephen Harrington contacted me this morning, looking for my permission to send emails to Town Meeting, or something like that. I don't understand why he needs my permission or what this is about. This is why I'm emailing you about it directly... maybe he's asking me to do something shady? Please do advise as there's something that I'm surely missing here.

Know that I have never agreed with Mr. Harrington about anything. However, he has my permission to send emails or letters to Town Meeting, so long as he's civil.

Also, last night's Town Meeting went great. I am grateful that I was given time to talk about the town's sanitary sewer system and how it is tied into the MWRA's failing regional system. Thank you!

Have an awesome day.

Best wishes,  
Kristin Anderson  
TMM, Pct 11

Sent from my iPhone

On May 23, 2022, at 11:30 PM, Greg Christiana <GChristiana@town.arlington.ma.us> wrote:

Hi Stephen,

To have your letter about Article 38 considered for distribution to the Town Meeting Member Email List and inclusion in the Annotated Warrant online, a Town Meeting Member will need to co-sign (or otherwise endorse) your letter and submit it to me.

You can find the complete list of messages sent to the Town Meeting Member Email List, and the "Town Meeting Member Submission Guidelines" at:

<https://www.arlingtonma.gov/town-governance/town-meeting/members-email-list>

I do not see any letters authored by you in that list of messages.

Regards,  
Greg

On Mon, May 23, 2022 at 10:43 PM Stephen Harrington <[sth.alist@gmail.com](mailto:sth.alist@gmail.com)> wrote:

CAUTION: This email originated from outside your organization. Exercise caution when opening attachments or clicking links, especially from unknown senders.

**CAUTION:** This email originated from outside of the Town of Arlington's email system. Do not click links or open attachments unless you recognize the REAL sender (whose email address in the From: line in "< >" brackets) and you know the content is safe.

Dear Arlington Town Meeting Moderator Greg Christiana,

Just getting the chance to reply now.

Yes, Kristin Anderson contacted you and Town Clerk Juli Brazile 6 days ago. At that time, your idea of accommodating public input was not as you are now describing.

Please, confirm, you have \*not\* forwarded my email to Town Meeting concerning Article 38; nor have you forwarded any of the eight emails I have requested you post on various agenda items of great public interest before the 2022 Town Meeting.

CC Arlington Town Counsel Douglas Heim.

Stephen Harrington

On May 23, 2022, at 12:52 PM, Greg Christiana  
<[GChristiana@town.arlington.ma.us](mailto:GChristiana@town.arlington.ma.us)> wrote:

Hi Stephen,

Ms. Anderson had questions about the submission policy which the Town Clerk and I answered several days ago. I have not yet received a submission from Ms.

Anderson including your letter. As a courtesy, I've contacted Ms. Anderson expressing that you would like her to submit your letter. As I explained to Ms. Anderson, I'll need the letter submitted by her, with her either co-signing the letter or including a cover letter signed by her.

Regards,  
Greg

On Mon, May 23, 2022 at 10:32 AM Stephen Harrington <[sth.alist@gmail.com](mailto:sth.alist@gmail.com)> wrote:

Dear Town Meeting Moderator Greg Christiana,

It has come to my attention that one of my precinct Town Meeting Members informed both you and Arlington Town Clerk Juli Brazile that she was willing to "co-sign" the below opinion concerning Article 38, as required by your unilateral, sudden change to 245 years of established custom and law.

For technical assistance that you mentioned being in need of; emails with embedded pictures, formatting and links can be converted to PDF by using Google Gmail; a screenshot has been attached for your edification. Please, let me know if you need further assistance in using Google email tools.

Please, post to the Arlington Town Meeting Email List.

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The views expressed here are my own. The following Town Meeting Members not just acknowledge our collective constitutional rights, they seek to protect them.

Kristin Anderson Precinct 11

### **Vote NO on Article 38.**

The driving force behind land use in Arlington and improvements to private property over the past two decades has been the conversion of 2-family, 3-family and multi-unit properties to condominiums. [Look it up;](#)

| Use      | FY2002 | FY2022 | change |
|----------|--------|--------|--------|
| 2-family | 2809   | 2081   | -728   |
| 3-family | 242    | 77     | -165   |
| condos   | 2002   | 3972   | +1970  |

165 (3-families) \* 3 + 728 (2-families) \* 2 = 1951 compared to 1970 new

condominiums over the past two decades. Compare that to the 82 additional single family homes (+1%) over the same 2002-2022 time frame.

Condominiums are starter homes in Arlington. Condos are the prevalent homes in urban centers. Condos represent the vast majority of housing development in Arlington. Condos are relatively affordable, owner occupied housing in Arlington.

Further, there have been a total of five (5!) two-family homes built in Arlington in the last 23 years.

<2fer.png>

Five new 2-family homes built in Arlington in 23 years. Two additional 3-families over the same time period.

The proponent and supporters marketing Article 38 as "2-families allowed by right" is just, umm, what's the phrase for advocacy that has no basis in reality used to sway decisions made on emotion and not critical understanding?

Strike 1. Article 38 has nothing to do with creating 2-family dwellings.

The loss of almost two thousand rental units has implications for a town that has a large fraction of renters. Article 38 does nothing to address rental demand. The discussion about rental properties disappearing in Arlington is remarkably absent.

### **Economics of condo conversions**

There seems to be a deficient understanding about the economics of the conversion of 2-family and 3-family dwellings to condominiums combined with an often spoken, and definitely unsavory, myth of the greedy developer/builder.

Did the town (planning department), Article 38 proponents or any of you demonstrate the economics behind condo-conversions? Have you calculated the land, building costs and the monetization of rental income cash flows to determine developer profits?

Can you? I have for Arlington. Developer profits are (mostly) that monetization of rental income cash flows over an ever decreasing time horizon.

Sure, some number of condo conversions leave the original owner of the 2-family in place, when that owner has the capital, skills and patience for extensive renovations within the existing shell providing that owner with an injection of

cash. Do you have the capital and skills to do that? Are these the greedy developers we hear about? It is no wonder many 2-family homeowners give up a portion of that income stream for immediate cash.

Many of Arlington's 2-family and 3-family dwellings are beyond their useful economic life and overwhelming replaced with newly constructed condominiums. As well, the replacement of older single family homes with newer single family homes that are larger makes sense- since homes function as more than just bedrooms and a kitchen now.

So who are these greedy developers?

Well, many developers are residents of Arlington, often doing a series of properties on one street, sometimes where they also live.

One of the most prolific developers in condo conversions is a Town Meeting Member. Some of your elected officials are real estate lawyers. The business of Arlington is real estate. These professionals understand the economics of the building developments in Arlington. Did you ask their opinions? Will any of them acknowledge a conflict of interest and recuse themselves from the vote on Article 38?

Have you considered that a factor in housing development in Arlington are these small-time, under capitalized, local developers? With debacles like Symmes and Mugar how much capital do you think Arlington can attract to build enough new housing to address the regional demand?

You think Town Meeting collectively or even individually can articulate the economics of development? Certainly Article 38 has not.

Strike 2.

## **Infrastructure**

The opponents of Article 38 expressed fear over the incursion of 2-family (omg rentals!) into single family neighborhoods. At least that argument was abandoned once debunked. Unfortunately, Article 38 supporters, including the Town, have failed to address the financial impact increasing density in Arlington's R0 and R1 zones will entail. Let's discuss sidewalks and roads.

Attached are two images. The first image shows, in red, the streets that have no sidewalks in Arlington. Notice that the entirety of the R0 zone has few sidewalks. The two major secondary roads that serve R0 - Ridge St and Hutchinson Road along the Winchester Country Club - have little to no sidewalks. These steep streets have seen horrific accidents in the past. Increasing density will require

Arlington to install about 50 miles of sidewalks in single family zones. About \$15M.

<Sidewalks.png>

Unlike East Arlington, there is little bike infrastructure, shops or public transportation in R0 and many other R1 zones in the hilly parts of Arlington. Increased density in these zones will result in an increase in car trips on Arlington roads.

Speaking of roads in Arlington, many roads in R0 and R1 zones are private ways. Below is a map, showing in red the private ways in Arlington; again concentrated in the hilly single family zones.

<PrivateWays.png>

These private ways are in atrocious condition. Watch someday as school officials and the public school bus travel over the crater filled Cutter Hill Road (and others) on their way to AHS. One divot that spans the entire width (<10') is 2 feet deep. That narrow passage way is shared by bikers, elementary school children on foot and about one car per minute during rush hours, of course with no sidewalk.

The Town Manager, reportedly was "advised" by a financial gadfly turned elected official, not to fill the potholes on private ways a couple of years ago. Now these roads are in atrocious condition.

Why would the Town advocate for increased density \*before\* addressing critical infrastructure needs? Why are we waiting for a tragedy \*before\* providing safety that is needed now in those areas?

The cost to bring 25 miles oi private ways to public safety standards is on the order of \$30M.

Voting to increase housing density \*before\* providing public safety infrastructure is short-sighted.

Strike 3.

I urge you to vote **NO** on Article 38.

Stephen Harrington

